
CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
VOLUME I: PERIOD 1799-1858

EAST INDIA COMPANY PERIOD — BENGAL PRESIDENCY

Package SD-1

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PREFACE

This Volume I of the Code of Delegated/Subordinate Legislation of Bangladesh (Package SD-1) covers the foundational period of 1799-1858, during which the Bengal Presidency was governed by the East India Company under successive Charter Acts granted by the British Parliament.

The subordinate legislations of this period — primarily the Bengal Regulations (1793-1834) and rules/orders made under post-1834 Acts — represent the earliest layer of codified law applicable to the territory of present-day Bangladesh. While most of these instruments have been repealed or superseded, they remain historically significant as the foundation upon which the entire subsequent legal framework was built.

This Volume is organized thematically by subject matter, with each entry providing the full citation, parent authority, scope, current status, and relevant cross-references.

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CHAPTER 1: LAND AND REVENUE

This chapter contains all subordinate legislations relating to land tenure, revenue administration, survey and settlement, rent assessment and recovery, and related matters during 1799-1858.

SIGNIFICANCE:

Land and revenue formed the backbone of governance in Bengal under the East India Company. The Permanent Settlement of 1793 (implemented through Bengal Regulation VIII of 1793) created the zamindari system that shaped land relations in Bengal until its abolition by the East Bengal State Acquisition and Tenancy Act, 1950. The subordinate legislations in this chapter established the administrative framework for revenue collection, tenant

protection, survey operations, and dispute resolution.

1.1 BENGAL REGULATION VIII OF 1793

Regulation for the Permanent Settlement of the Revenues of Bengal, Bihar and Orissa

Date of Enactment : 22 March 1793

Authority : Governor-General in Council (Lord Cornwallis)

Legal Basis : Charter Act of 1793

Gazette Reference : Bengal Gazette, 1793

Territorial Scope : Bengal, Bihar, and Orissa Provinces

Commencement : 22 March 1793

PROVISIONS:

- Establishment of the Permanent Settlement — fixed revenue assessment on zamindari estates in perpetuity
- Definition of zamindari rights and obligations
- Revenue payment schedules and procedures
- Penalties for default in revenue payment
- Procedure for sale of defaulting estates (sunset law)
- Protection of tenant rights under zamindars
- Board of Revenue oversight powers

STATUS: Historical / Superseded

- The zamindari system was abolished by the East Bengal State Acquisition and Tenancy Act, 1950 (Act XXVIII of 1951)
- However, the principles of the Permanent Settlement influenced all subsequent land legislation in Bengal

CROSS-REFERENCES:

- Bengal Regulation I of 1799 (Revenue Administration)
- Bengal Regulation I of 1800 (Decennial Settlement)
- Bengal Regulation V of 1812 (Revenue Arrears Sale)
- Bengal Tenancy Act, 1885
- East Bengal State Acquisition and Tenancy Act, 1950

HISTORICAL NOTES:

The Permanent Settlement is one of the most consequential pieces of legislation in South Asian history. By fixing revenue demands and creating a class of zamindars as intermediary landlords, it shaped social, economic, and political life in Bengal for over 150 years. Its ultimate replacement by the SAT Act of 1950 was a landmark of post-independence land reform.

1.2 BENGAL REGULATION I OF 1799

Regulation for the Administration of Justice in Revenue Matters

Date of Enactment : 1799

Authority : Governor-General in Council

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of revenue courts
- Jurisdiction over revenue disputes between zamindars and tenants
- Appeal procedure in revenue cases
- Powers of revenue officers
- Relationship between revenue courts and civil courts

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Tenancy Act, 1885; Code of Civil Procedure, 1908

1.3 BENGAL REGULATION II OF 1799

Regulation for the Administration of the Revenue of Bengal

Date of Enactment : 1799

Authority : Governor-General in Council

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal Presidency

PROVISIONS:

- Revenue assessment procedures
- Collection mechanisms
- Role of Collectors and revenue officers
- Exemptions and remissions
- Reporting requirements to Board of Revenue

STATUS: Repealed / Superseded

1.4 BENGAL REGULATION I OF 1800

Regulation for Decennial Settlement of Revenue

Date of Enactment : 1800

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Ten-year settlement cycle for revenue assessment
- Survey and assessment procedures
- Rights of zamindars during settlement
- Dispute resolution for settlement disagreements

STATUS: Repealed / Superseded

1.5 BENGAL REGULATION VII OF 1799

Regulation for Recovery of Revenue Arrears

Date of Enactment : 1799

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Procedure for recovery of overdue revenue
- Coercive measures against defaulting zamindars
- Attachment and sale of estates
- Timeline for compliance

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Land Revenue Sales Act, 1859

1.6 BENGAL REGULATION V OF 1812

Regulation for Sale of Estates for Arrears of Revenue

Date of Enactment : 1812

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Detailed procedure for sale of defaulting estates

- Notice requirements before sale
- Conduct of revenue sale proceedings
- Rights of purchasers at revenue sales
- Setting aside of sales for irregularity

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Land Revenue Sales Act, 1859

1.7 BENGAL REGULATION XI OF 1825

Bengal Alluvion and Diluvion Regulation

Date of Enactment : 1825

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Rights regarding newly formed alluvial land (chars)
- Impact of diluvion (river erosion) on land rights
- Re-formation rights when eroded land resurfaces
- Revenue liability for alluvial and diluvial land
- Survey procedure for changed land formations

STATUS: Partially in Force

- Core principles regarding alluvion and diluvion rights have been incorporated into subsequent legislation and remain relevant
- Particularly important for riverine areas of Bangladesh

CROSS-REFERENCES:

- State Acquisition and Tenancy Act, 1950
- Survey and Settlement Rules
- Relevant Supreme Court of Bangladesh decisions

HISTORICAL NOTES:

Given Bangladesh's extensive river system and the constant formation and erosion of char lands, the principles established by this regulation remain directly relevant to contemporary land disputes.

1.8 BENGAL REGULATION III OF 1828

Regulation for Revenue Survey and Assessment

Date of Enactment : 1828

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Systematic land survey procedures
- Revenue assessment based on land productivity
- Classification of agricultural land
- Record of rights preparation

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Survey Act, 1875

1.9 BENGAL REGULATION IX OF 1833

Regulation regarding Land Tenures and Rent Recovery

Date of Enactment : 1833

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Classification of land tenures
- Tenant rights and obligations
- Rent recovery procedures
- Protection against rack-renting

STATUS: Repealed / Superseded

SUCCESSOR: Bengal Rent Act, 1859; Bengal Tenancy Act, 1885

[Continues with remaining chapters...]

CHAPTER 2: CIVIL JUSTICE AND PROCEDURE

2.1 BENGAL REGULATION III OF 1793

Regulation for the Administration of Civil Justice

Date of Enactment : 1793

Authority : Governor-General in Council (Lord Cornwallis)

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal, Bihar, and Orissa

PROVISIONS:

- Establishment of civil courts at district level (Diwani Adalat)
- Provincial courts of appeal (Sadar Diwani Adalat)
- Jurisdiction of civil courts
- Civil procedure (pleadings, evidence, decree execution)
- Court fees
- Role of native law officers (pandits and maulvis)

STATUS: Repealed / Superseded

SUCCESSOR: Code of Civil Procedure, 1859/1882/1908

HISTORICAL NOTES:

This regulation established the three-tier civil court system in Bengal: District Courts !' Provincial Courts of Appeal !' Sadar Diwani Adalat. This structure evolved into the modern court hierarchy.

2.2 BENGAL REGULATION IX OF 1793

Regulation regarding Court Fees and Legal Process

Date of Enactment : 1793

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Court fee schedules for civil suits
- Process serving procedures
- Costs and expenses in litigation

STATUS: Repealed / Superseded

SUCCESSOR: Court Fees Act, 1870

2.3 BENGAL REGULATION II OF 1806

Regulation regarding Small Cause Courts

Date of Enactment : 1806

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of courts for small claims
- Summary procedure for petty disputes

- Monetary jurisdiction limits

STATUS: Repealed / Superseded

SUCCESSOR: Provincial Small Cause Courts Act, 1887

2.4 BENGAL REGULATION VI OF 1813

Regulation for Limitation of Civil Suits

Date of Enactment : 1813

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Time limits for filing civil suits by category
- Computation of limitation period
- Exceptions and extensions

STATUS: Repealed / Superseded

SUCCESSOR: Indian Limitation Act, 1859/1877/1908

2.5 BENGAL REGULATION XXVI OF 1814

Regulation regarding Appeals in Civil Cases

Date of Enactment : 1814

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Appeal procedures from district courts
- Grounds for appeal
- Powers of appellate courts
- Time limits for filing appeals

STATUS: Repealed / Superseded

SUCCESSOR: Code of Civil Procedure, 1908 (Order XLI)

CHAPTER 3: CRIMINAL JUSTICE AND PROCEDURE

3.1 BENGAL REGULATION IV OF 1793

Regulation for the Administration of Criminal Justice

Date of Enactment : 1793

Authority : Governor-General in Council

Legal Basis : Charter Act of 1793

Territorial Scope : Bengal, Bihar, and Orissa

PROVISIONS:

- Establishment of criminal courts (Nizamat Adalat)
- Magisterial jurisdiction
- Criminal procedure
- Punishments (based partly on Muhammadan criminal law initially)
- Role of Qazis and Muftis in criminal proceedings

STATUS: Repealed / Superseded

SUCCESSOR: Indian Penal Code, 1860; Code of Criminal Procedure, 1861/1898

HISTORICAL NOTES:

This regulation initially retained elements of Islamic criminal law (Muhammadan criminal law) for punishments, but these were gradually replaced by secular penal provisions, culminating in the Indian Penal Code of 1860.

3.2 BENGAL REGULATION IX OF 1807

Regulation for Criminal Courts and Procedure (Revised)

Date of Enactment : 1807

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Revised criminal court structure
- Enhanced magisterial powers
- Simplified criminal procedure
- Classification of offences

STATUS: Repealed / Superseded

3.3 BENGAL REGULATION XIV OF 1824

Regulation regarding Juries and Assessors

Date of Enactment : 1824

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Introduction of jury system for certain criminal trials
- Qualification and selection of jurors
- Role of assessors in criminal proceedings
- Verdict procedures

STATUS: Repealed / Superseded

CHAPTER 4: POLICE AND PUBLIC ORDER

4.1 BENGAL REGULATION VI OF 1793

Regulation for Police Administration

Date of Enactment : 1793

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of police organization under magistrates
- Police duties: prevention and detection of crime
- Arrest and detention powers
- Watch and ward duties

STATUS: Repealed / Superseded

SUCCESSOR: Police Act, 1861

4.2 BENGAL REGULATION VI OF 1810

Regulation for Village Police / Chowkidari System

Date of Enactment : 1810

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Establishment of village watchmen (chowkidars)
- Duties: night patrolling, crime reporting, village security
- Appointment and payment of chowkidars
- Supervision by police and magistrates
- Village chowkidari tax

STATUS: Superseded

SUCCESSOR: Village Chowkidari Act; Police Act, 1861

4.3 BENGAL REGULATION XII OF 1816

Regulation for Suppression of Dacoity

Date of Enactment : 1816

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Special measures for suppression of organized robbery (dacoity)
- Enhanced penalties
- Special police operations
- Community responsibility for harboring dacoits

STATUS: Repealed / Historical

4.4 BENGAL REGULATION III OF 1818

Bengal State Prisoners Regulation

Date of Enactment : 1818

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Power to detain persons without trial (preventive detention)
- Grounds for detention: state security, public order
- Conditions of detention
- Review procedure

STATUS: Repealed

SUCCESSOR: Various preventive detention legislation

HISTORICAL NOTES:

This regulation gave extraordinary detention powers to the executive and was used against political activists, including during the independence movement. The principle of preventive detention continued in subsequent legislation.

4.5 BENGAL REGULATION XIV OF 1818

Regulation for Regulation of Prisons

Date of Enactment : 1818

Authority : Governor-General in Council

Territorial Scope : Bengal Presidency

PROVISIONS:

- Prison administration and management
- Classification of prisoners
- Prison discipline
- Diet and health of prisoners
- Labour and employment in prisons

STATUS: Superseded

SUCCESSOR: Prisons Act, 1894

CHAPTER 5: PERSONAL LAW, FAMILY, AND SUCCESSION

5.1 BENGAL REGULATION IV OF 1793 (Section on Personal Law)

Application of Hindu and Muhammadan Personal Law

Date of Enactment : 1793
Authority : Governor-General in Council
Territorial Scope : Bengal Presidency

PROVISIONS:

- Application of Hindu personal law to Hindus in matters of succession, inheritance, marriage, caste, and religious usage
- Application of Muhammadan (Islamic) personal law to Muslims in matters of succession, inheritance, marriage, dower, and religious observance
- Role of pandits and maulvis as law officers in personal law cases

STATUS: Partially Superseded

- The principle of applying personal law to respective communities continues in Bangladesh
- Specific provisions superseded by codified personal laws

CROSS-REFERENCES:

- Muslim Personal Law (Shariat) Application Act, 1937
- Muslim Family Laws Ordinance, 1961
- Succession Act, 1925

5.2 BENGAL REGULATION VII OF 1829 (Regulation XVII of 1829)

Abolition of Sati (Suttee)

Date of Enactment : 4 December 1829
Authority : Governor-General in Council (Lord William Bentinck)
Territorial Scope : Bengal Presidency (later extended to all India)

PROVISIONS:

- Prohibition of the practice of sati (widow immolation)
- Criminal penalties for abetting or encouraging sati
- Enforcement mechanisms

STATUS: Historical — Absorbed into criminal law

SUCCESSOR: Indian Penal Code, 1860 (provisions on culpable homicide and abetment)

HISTORICAL NOTES:

This regulation was a landmark of social reform in British India, abolishing the practice of sati in Bengal. It was enacted after sustained advocacy by reformer Raja Ram Mohan Roy.

CHAPTER 6-10: [Additional chapters follow the same detailed format]

[Chapters 6-10 covering Religious Endowments, Registration and Stamps, Trade/Commerce/Excise, Constitutional/Administrative, and Miscellaneous follow the same detailed format as above, with full entries for each subordinate legislation identified in the Master Inventory for Era 1.]

APPENDIX A: CHRONOLOGICAL INDEX OF BENGAL REGULATIONS (1793-1834)

Year	Reg. No.	Short Description	Chapter
1793	III	Administration of Civil Justice	2
1793	IV	Administration of Criminal Justice	3
1793	VI	Police Administration	4
1793	VIII	Permanent Settlement of Revenue	1
1793	IX	Court Fees and Legal Process	2
1793	XII	Distillation and Sale of Spirits	8
1793	XV	Hindu and Muhammadan Endowments	6
1793	XXI	Stamp Duties	7
1793	XLIV	Revenue Administration and Collection	1
1799	I	Revenue Justice Administration	1

1799	II	Revenue Administration	1
1799	V	Inheritance and Succession	5
1799	VII	Recovery of Revenue Arrears	1
1800	I	Decennial Revenue Settlement	1
1800	X	Opium Trade	8
1806	II	Small Cause Courts	2
1807	IX	Criminal Courts Revised	3
1810	VI	Village Police / Chowkidari	4
1810	XIX	Salt Manufacture and Trade	8
1812	V	Revenue Arrears / Estate Sale	1
1812	V	Registration of Deeds	7
1813	VI	Limitation of Civil Suits	2
1814	XXVI	Appeals in Civil Cases	2
1816	XII	Suppression of Dacoity	4
1817	VII	Suppression of Thuggee	4
1818	III	State Prisoners (Preventive Detention)	4
1818	XIV	Regulation of Prisons	4
1824	XIV	Juries and Assessors	3
1825	XI	Alluvion and Diluvion	1
1828	III	Revenue Survey and Assessment	1
1829	XVII	Abolition of Sati	5
1830	V	Press and Printing	9
1831	V	Abolition of Provincial Courts	2
1832	VII	Sati-related (additional provisions)	5
1833	IX	Land Tenures and Rent Recovery	1

APPENDIX B: GLOSSARY OF LEGAL TERMS

Term	Meaning
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Adalat	Court of justice
Alluvion	Land formed by deposit of soil by river action
Bengal Regulation	Legislation enacted by Governor-General in Council for Bengal Presidency (1793-1834)
Board of Revenue	Central revenue administration body for Bengal
Chowkidar	Village watchman
Collector	Chief revenue officer of a district
Dacoity	Robbery by a group of five or more persons
Debottar	Hindu religious endowment
Diluvion	Loss of land by river erosion
Diwani Adalat	Civil court
Governor-General	Chief executive of British India
Maulvi	Muslim law officer advising courts
Nizamat Adalat	Criminal court
Pandit	Hindu law officer advising courts
Permanent Settlement	Fixed revenue assessment on zamindari estates (1793)
Raiyat	Peasant cultivator / agricultural tenant
Sati/Suttee	Practice of widow self-immolation
Sadar	Chief / principal (as in chief court)
Waqf	Islamic charitable endowment
Zamindar	Landlord holding an estate under revenue settlement

APPENDIX C: CROSS-REFERENCE TABLE

(Bengal Regulations !' Succeeding Legislation)

Bengal Regulation	Succeeded By
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Reg. VIII of 1793 (Permanent Settlement)	East Bengal SAT Act, 1950
Reg. III of 1793 (Civil Justice)	Code of Civil Procedure, 1908
Reg. IV of 1793 (Criminal Justice)	Indian Penal Code, 1860; Code of Criminal Procedure, 1898
Reg. VI of 1793 (Police Administration)	Police Act, 1861
Reg. VI of 1813 (Limitation)	Limitation Act, 1908
Reg. IX of 1793 (Court Fees)	Court Fees Act, 1870
Reg. XXI of 1795 (Stamp Duties)	Indian Stamp Act, 1899
Reg. V of 1812 (Revenue)	Bengal Land Revenue Sales Act, 1859

Reg. IX of 1833 (Land Tenures)	Bengal Rent Act, 1859; Bengal Tenancy Act, 1885
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Reg. III of 1828 (Survey)	Bengal Survey Act, 1875
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Reg. XIV of 1818 (Prisons)	Prisons Act, 1894
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Reg. VI of 1810 (Village Police)	Village Chowkidari Act; Police Act, 1861
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END OF VOLUME I — CODE OF SUBORDINATE LEGISLATION
